

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7MX23R0092

☒ ORIGINAL

☐ ADDENDUM (attach copy of original J&A for add-ons or revisions)

1. The Defense Logistics Agency – DLA Land and Maritime is the contracting activity.

2. The action being approved is the acquisition of supplies on other than a full and open competition basis.

- The resulting contract will be Firm Fixed-Price with Annual Price Adjustments, Indefinite Quantity Contract under FAR Part 15 for a 2-year base period with the option to extend the contract for two additional years in one-year increments.

3. The supplies required to meet the using activity's needs are described as follows:

Project Number	ESTIMATED 4YR VALUE	ESTIMATED 2YR VALUE	MIN / MAX
CM23089002			

NSN	NOMENCLATURE	AVERAGE ESTIMATED QUANTITY (ADQ) / UI	AVERAGE ESTIMATED VALUE (ADV)	ESTIMATED 2YR VALUE	ESTIMATED 4YR VALUE	AMC / AMSC	QCC
4720014404277	HOSE, AIR DUCT, AIR B	4,796 / PG				3/D	DAA

End item, weapon system, or class of item:

- An odorless, flexible, hollow item, without end coupling or a communication cable. It may be of single or multiple layer construction and may contain wire reinforcement. It is designed for use in low pressure breathing oxygen system, airline masks, and the like. Excludes hose, nonmetallic.
- List of WSDC's
AIRCRAFT, HERCULES C-130
T-38 AIRCRAFT
F/A-18 HORNET
PROWLER EA-6B AIRCRAFT
EA-6B AN/ALQ-99 TAC JAMMER
B-1B BOMBER
AIRCRAFT, SOF (AC-130H, AC-130J, AC-130U)
AIRCRAFT, OSPREY V-22A, MARINE
AVIATION LIFE SUPPORT SYSTEMS
AIRCRAFT, FA-18, A-D, E/F, G (GROWLER)

Approved Sources and Part Number:

GENTEX CORPORATION 60240 P/N G010-1025-01

NAICS 332999 is not in the NMR class waiver list.

[REDACTED]
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NSN	NOMENCLATURE	AVERAGE ESTIMATED QUANTITY (ADQ) / UI	AVERAGE ESTIMATED VALUE (ADV)	ESTIMATED 2YR VALUE	ESTIMATED 4YR VALUE	AMC / AMSC	QCC
5965014699770	MICROPHONE ELEMENT	3,128 / EA	[REDACTED]	[REDACTED]	[REDACTED]	3/D	DAA

- A complete fabrication of the essential internal operating parts of a microphone.
- List of WSDC's
AIRCRAFT, HERCULES C-130
AIRCRAFT, EAGLE F-15
F-16 AIRCRAFT
T-38 AIRCRAFT
C-130 SUPPORT EQUIPMENT
PARACHUTIST OXYGEN MASK (POM)
SPECIAL, COMMON GROUND EQUIPMENT, AGE
MIDS JTRS AN/USQ190
U-2 AIRFRAME
SPECIAL, MISC. PRECISION MEASUREMENT EQP

Approved Sources and Part Number:

GENTEX CORPORATION 60240 P/N G030-1080-02

NAICS 334310 is in the NMR class waiver list.

4. The statutory authority permitting other than full and open competition is:

- 10 U.S.C. 3204(a)(1): Available from only one or a limited number of sources.

5. If restricted to only certain source(s) of supply, include source(s) and CAGE code:

NSN 4720014404277

Approved Sources and Part Number:

GENTEX CORPORATION 60240 P/N G010-1025-01

NSN 5965014699770

Approved Sources and Part Number:

GENTEX CORPORATION 60240 P/N G030-1080-02

The use of authority cited above is supported by the following Acquisition Method Code (AMC) and Acquisition Method Suffix Code (AMSC):

- **AMC 3:** Acquire directly from the actual manufacturer, whether or not the prime contractor is the actual manufacturer.
- **AMSC D:** The data needed to acquire this part competitively is not physically available, it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation.

Product Specialist, [REDACTED], confirmed the following on 1/6/2023:

- This item is AMC/AMSC of 3/D. This item supports various WSDC'S. **Gentex Corporation. (60240)** is the only source capable of making this item. DLA does not possess adequate data, lacks rights to data, and/or has no record of an alternate Design Control Activity approved source. The data presently available reflects the minimum needs of the Government. An alternate source must qualify in accordance with the design control activity's procedures, as approved by the cognizant Government engineering activity. There is no outstanding DLA Form 339 request for additional sources.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

- The acquisition will be synopsisized for **15** days prior to the solicitation opening. At the completion of the synopsis period, the Purchase Request (PR) will be solicited on the internet for **30** days via the DLA Internet Bid Board System (DIBBS).

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable:

- A price analysis will be conducted using historical pricing, the Producer Price Index (PPI), and learning curve analysis. Cost or pricing data in accordance with FAR 15.403-4 will be requested if the offeror's proposal exceeds the \$2M threshold for obtaining cost data. It is anticipated that this procurement will exceed that threshold, therefore cost and pricing data will be required. Based on the above techniques, the Contracting Officer anticipates that the cost to the Government will be fair and reasonable.

8. Market Research/Efforts to Obtain Competition:

- Market research consisted of review of past procurements, market surveys received from interested parties, and internet sources.
- Procurement history:

NSN 4720014404277, HOSE, AIR DUCT, AIR BREATHING.

[illegible]

NSN 5965014699770, MICROPHONE ELEMENT.

[illegible]

- A sources sought notice was posted on SAM.gov from **6/6/2023 to 6/14/2023**. No responses were received.
- A GSA search did not yield any results for all part numbers. An internet search of the NSN numbers, part numbers, and nomenclatures was conducted to search for possible new sources. The search did not yield any new sources for this item. The only sources found were the approved sources listed in section 5. The NSN's covered by this initiative will be Non-Commercial based on the definition of a commercial item located at FAR 2.101 and will be procured under FAR Part 15 with CCPD requirements.
- Market Surveys [10 U.S.C.3204(e)(2)(D)].

A market survey was conducted on 4/12/2023.

Techniques used to conduct survey: e-mail correspondence.

Types of information requested: Business size, manufacturer or dealer, price breaks, commerciality, estimated delivery, and quantity sensitivity.

Total number of vendors contacted: 1

Names of unresponsive vendors: 0

Names of vendors and summary of information from responses:

- **Gentex Corporation (60240)**
Large Business – Manufacturer with 125 employees.
Interested in long term contract [REDACTED]
Both items are not commercial.
[REDACTED]

After communicating with Gentex through email on 6/12/2023, they communicated that their intentions are to submit an offer directly to DLA Land & Maritime, not through distributors once the solicitation is published for both NSN's.

Commercial determination:

The NSN's covered by this initiative will be Non-Commercial based on the definition of a commercial item located at FAR 2.101 and will be procured under FAR Part 15. The following Non-Commerciality determinations have been made. COTS field in the MM03 query in SAP does not indicate these are commercial Items.

Review of the Material Master database indicated that these NSN's have limited sources. Review of the OEM's website neither shows evidence that this item is available on the commercial market nor is it of a type customarily used by the general public or non-governmental entities for purposes other than government or military purposes as defined in FAR 2.101. Market research via internet resources for commercial sale offerings yielded no results to show that this item has been offered for sale, lease or license to the general public as defined in FAR 2.101, "Commercial Item."

Market research did not yield any readily available published catalog price lists, schedules or other form of commercial pricing that are regularly maintained and updated by a manufacturer or vendor that are available to the general public for inspection. Additionally, there is no evidence of sale prices at which sales were made to a significant number of buyers constituting the general public. General public is interpreted as individuals using such parts in a manner other than a governmental or military capacity. Therefore, the Contracting Officer determines these items to be non-commercial, and the solicitation shall be issued pursuant to FAR Part 15 procedures.

9. Additional facts supporting other than full and open competition are:

- Based upon the technical certification on file in DLA Land and Maritime – VEP technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

10. A listing of sources, if any, indicating an interest in the acquisition is:

- Gentex Corporation. (60240)

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11. This item is subject to the following methods of locating additional sources:

- The solicitation will contain procurement note L04– Offers for Part Numbered Items and M06 - Evaluation of Offers for Part Numbered Items.

12. Previous Justification for Other than Full and Open Competition IS attached:

- Procurement history for both NSN's reflect awards dating from 3/2017 to 3/2023. See Attachment for the most recent Request for Proposal's redacted/unredacted J&A.

Attachment

1. Prior J&A SPE7L318R0071

APPROVAL/CERTIFICATION

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

BARROWMAN. Digitally signed by
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87251 Date: 2023.10.26
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Alicia Barrowman – CONTRACTING OFFICER

I have reviewed and approved this justification:

DAPO.DOUGLA Digitally signed by
S.A.123022001 DAPO.DOUGLAS.A.1230
4 220014
Date: 2023.10.26 16:06:00
-04'00'

Douglas A. Dapo – COMPETITION ADVOCATE

APPROVAL REQUIREMENTS

☒ \$750,000 to \$15,000,000

Competition Advocate